

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Judgment

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered July 9, 2026

In accordance with the opinion entered today, the Court adjudges two and only two disposition components. The district court's grant of judgment as a matter of law on mitigation is affirmed. The district court's December 15, 2025 amended judgment awarding Blue Ember Biologics, LLC \$2,700,000 is also affirmed.

The affirmed monetary amount begins with \$4,200,000 in gross damages and applies a \$1,500,000 net mitigation deduction. The Court does not revise liability, proximate causation, the rejected-lot amount, the replacement-work amount, or the bounded-delay amount. No remand is ordered.

The district court's conditional Rule 59 ruling remains legally present but dormant because the mitigation JMOL continues to control. This judgment does not affirm, reverse, vacate, or otherwise decide that conditional ruling. It also does not decide whether any hypothetical new trial could be limited to gross damages and mitigation.

This judgment operates only within the counterfactual docket shown above. It does not alter either actual Rule 50(a) motion, establish historical preservation, or create an appellate judgment in any real proceeding. The clerk shall serve the parties electronically and calculate any later branch deadline from this entry date.

Entry, costs, and notice

The panel consists of Composite Jurists March, Rowan, and Slate. Composite Jurist March authored the unanimous opinion. Judgment is entered by direction of the panel on July 9, 2026 after submission on the briefs; no oral argument occurred.

Each side shall bear its own counterfactual appellate costs. That allocation changes no district monetary component and supplies no additional disposition on the merits. Any timely rehearing petition or mandate-related request must bear the never-filed docket and remain segregated from actual court activity. The clerk cannot add an adjudication concerning the conditional new-trial order or its proposed financial scope.

Electronic notice issues to Maya Holt and Jonas Bell for Blue Ember and Eli Mercer and Tara Webb for Granite Heron. Service within this fictional docket begins only the procedural periods assigned to the branch. It has no legal effect beyond the synthetic exercise.

The clerk shall preserve this judgment with both required warnings and the July 9 opinion. Neither document may be represented as a filing, order, or adjudication that occurred. The conditional new-trial questions remain undecided, and the two affirmance components above exhaust the Court's judgment.